murder or participated in the attack. Yet, he has been sentenced to death for murder (Section 302 of the Indian Penal Code), waging war against the state (Sections 121 and 121A) and criminal conspiracy (Sections 120A & B). On the face of it, the punishment is excessive and wholly disproportionate to the crime.

Afzal was tried under the Prevention of Terrorism Act (POTA), but sentenced under the Indian Penal Code. POTA clearly distinguishes between committing a terrorist act resulting in death (punishable by death), and conspiracy in the act (penalty, life imprisonment). It makes no sense to invoke a harsher law selectively when a specific anti-terrorist law exists.

The courts relied both on Afzal's own testimony— which showed that he, a surrendered militant, brought one of the five attackers (Mohammad alias Burger) from Kashmir to Delhi and helped him purchase a second-hand car— and on circumstantial evidence, which crucially hinges on the recovery of explosives from his house and records of cellphone calls with the five militants.

Both are open to doubt. The police say that they found explosives in Afzal's house when he was in custody, but cannot satisfactorily explain why they broke into it when the landlord had the key. This puts a question mark over the evidence. The cellphone records were all traced to a Delhi number used on an instrument allegedly found on Afzal when he was arrested in Srinagar. The instrument did not contain a SIM (Subscriber Identity Module) card; it was identified through the IMEI (International Mobile Equipment Identity) number (which is unique to each instrument).

But how did the police discover the IMEI number? This can only be done in two ways: you either open the instrument and read the number; or you dial a code and it is displayed. But the policeman who made the recovery said on oath that he neither opened the instrument nor operated it. (Remarkably, Jammu and Kashmir did not have a cellular network in 2001.)

It is open to doubt whether Afzal actually had the cellphone that was so crucial to establishing that he was in contact with all five terrorists. In the absence of conclusive evidence that the number belonged to and was used by Afzal, a deep, substantive conspiracy cannot be established.

There is another grey area. The police produced a dealer who deposed that Afzal had bought the cellphone on 14 December, with a new SIM card. But the police's own records show that the number was in use since 6 November.